

590 U. S.

June 15, 2020

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I continue to have strong doubts about our §1983 qualified immunity doctrine. Given the importance of this question, I would grant the petition for certiorari.

No. 19–27. *CHEESEMAN v. POLILLO, CHIEF OF POLICE, CITY OF GLASSBORO, NEW JERSEY, ET AL.* Super. Ct. N. J., App. Div. Motion of Firearms Policy Coalition et al. for leave to file brief as *amici curiae* granted. Certiorari denied.

No. 19–532. *UNITED STATES v. CALIFORNIA ET AL.* C. A. 9th Cir. Certiorari denied. JUSTICE THOMAS and JUSTICE ALITO would grant the petition for writ of certiorari. Reported below: 921 F. 3d 865.

No. 19–1010. *ACTAVIS HOLDCO U. S., INC., ET AL. v. CONNECTICUT ET AL.* C. A. 3d Cir. Motion of Twelve Companies et al. and Chamber of Commerce of the United States of America et al. for leave to file briefs as *amici curiae* granted. Certiorari denied.

No. 19–1105. *SHARP, INTERIM WARDEN v. HARRIS.* C. A. 10th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 941 F. 3d 962.

No. 19–1191. *OHIO v. FORD.* Sup. Ct. Ohio. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 158 Ohio St. 3d 139, 2019-Ohio-4539, 140 N. E. 3d 616.

No. 19–6593. *FORD v. WHITE ET AL.* C. A. 9th Cir. Motion of petitioner for reconsideration of order denying leave to proceed

at 168, 183. Scholars have debated whether this holding is correct. Compare Zagrans, “Under Color of” *What* Law: A Reconstructed Model of Section 1983 Liability, 71 Va. L. Rev. 499, 559 (1985), with Winter, The Meaning of “Under Color of” Law, 91 Mich. L. Rev. 323, 341–361 (1992), and Achtenberg, A “Milder Measure of Villainy”: The Unknown History of 42 U.S.C. §1983 and the Meaning of “Under Color of” Law, 1999 Utah L. Rev. 1, 56–60. Although concern about revisiting one doctrine but not the other is understandable, see *Crawford-El v. Britton*, 523 U.S. 574, 611 (1998) (Scalia, J., joined by THOMAS, J., dissenting), respondents—like many defendants in §1983 actions—have not challenged *Monroe*.